
Indigenous Law Institute

Toward an Oglala Lakota Constitution

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by

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Introduction

We, the People of the Oceti Sakowin, have existed rightfully free and independent since the beginning of time. As a sovereign Nation, we are, and forever shall be, rightfully free and independent. Accordingly, we the People of the Oglala Lakota Nation have the inherent right to establish any government for ourselves. This is but an exercise of our inherent power and vested right of self-determination.

Our sovereignty resides in the spirituality and spiritual fire of the People. Just as a spiritual fire resides in and provides the essence of Life within each and every person, so too, a spiritual fire resides in and provides the essence of Life for the People as a whole. This is the basis of our respective Council Fires. This spiritual fire, combined with our innate intelligence, provides the energy, knowledge and wisdom necessary to create a beneficial and spiritual way of life for the People in our sacred homeland.

The purpose of an Oglala Lakota Constitution is Wolakota, a spiritual way of life, based on the Seven Laws that were handed to our People by the Sacred White Buffalo Calf Pipe Woman. Wolakota is a life of peace, friendship, brotherhood and sisterhood, treaties, and right relationship between and among the members of the Nation, within each family circle (Tiwahe), within each extended family (Tiospaye), within the Oglala Lakota Nation, and within the Oceti Sakowin as a whole. Wolakota is also right relationship and respect between human beings and all forms of life, as well as between and among allies.

At one time a written Oglala Lakota constitution was not necessary because the People understood and lived a life of Wolakota. Thus, the main purpose of the Oglala Lakota Constitution, based on the Seven Laws, and the basic Elements of Life, is to achieve healing and revitalization for the Oglala Lakota Nation. Four key Elements of Life provide the very basis of our Life as a Nation: makoce (earth, land, matter), mni (water, movement, liquid sustenance), peta (fire, lightning, laser energy), oniye (air, breath). These four Elements of Life and the Seven Laws provide the basis of the Fundamental and Organic Laws of the Oglala Lakota Nation. By upholding and living in accordance with these Natural Laws, we will achieve health, strength, security, and well-being within our Sacred Oyate. Decisions made by the government of the Oglala Lakota Nation ought to manage the affairs of the Nation with regard to the well-being of the People seven generations into the future. The laws, regulations, and codes of the Nation all fall under one or more of these four Elements of Life.

Four Elements of Life Provide the Basis of Self-Government

Makoce (Land) Billions of years ago, Inyan gave life to Wi. As a result, Winyan came to life. Winyan is the Sacred Life-Giver. Every handful of earth or dirt has life. Your ancestors lived there. The Earth is where life comes from. It took millions of years for the dirt to form; it's alive both spiritually and biologically; it's teeming with Life. Wamakaskan, is the spirit that comes from the dirt, because the dirt has been created by living things coming to life, living, dying and coming back to life again. Every year, something grows there, and dies and decays, and grows again. Wa (snow) is the purest form of matter. Ma ka (dirt). Skan skan (movement). Wa ma ka skan: Spirit ("The sacred dirt that moves.")

Land issues currently faced by the Nation include: jurisdiction, territory, environmental regulations, rematriation (mater, means “mother,” thus, rematriation means, “returning to the Mother Earth.”) issues involving ancestral remains, land use, land reform, realty, land operations, farming, organic gardening, natural resources, agriculture, ranching, split heirship lands, land ownership, banking, financing, trees and shelter belts (tree planting), industrial hemp production, housing needs, zeolyte and other minerals, the fact “Indian trust lands” are some 80% cheaper than white owned lands, archaeological sites, recycling waste matter, and remineralization of the soil. The land needs to be cleaned up and Mother Earth protected by recycling waste and remineralization.

Mni (water, movement) Water is life-sustaining liquid. Water is an essential element of Life because without it, everything dies. Because water is sacred, it should not be contaminated and polluted. Water is naturally stored in the Earth’s aquifers. Water flows as healing liquid through natural springs and hot springs. Water flows through the rivers, the veins of Mother Earth, the Sacred Life-Giver. Water recharges our bodies. Pure water is medicine that flushes toxins from our bodies, and sustains the child in the womb of its mother. Falling rain drops and snow help cleanse the air of contaminants.

Water issues currently faced by the Nation include: accessibility, purity & water pollution standards, agriculture, ranching, mining, water dispute resolution, hydroelectric power, waste water management, aquifer protection (Oglala aquifer and Madison geothermal formation), water purification systems, drinking water quality standards, water pollutants (persistent organo-chlorines, lead, and cyanide), women’s health, women’s reproductive systems, water for medicinal purposes, rain water, condensation, geothermal power, the water needs of future generations.

Peta (Fire, energy, lightning) Fire provides energy and heat. Fire must be respected because it has the power to destroy, but it also has the power to enable us to live even in the coldest of winters. Fire has the power to rejuvenate and replenish, even dead plants. Fire is used in our ceremonies. The sparks from every ceremonial fire represent the spirits of our ancestors. Our ancestors regarded the return of Wakinyan (the thunder beings) as the beginning of a new cycle. The Thunder Beings tells us a new year begins. When lightning strikes the ground, the heat activates nitrogen in the soil. This energy gives new life, and green things spring forth and begin to grow.

Fire issues currently faced by the Nation include: fire protection, controlled periodic burning of underbrush and plant life, which rejuvenates plants and the soil. Fire also relates to the sun, which leads to the issue of solar energy through photovoltaic cells and solar ponds.

Oniye (Air, breath, oxygen) Without breath and air we die. Clean air is essential for the health and life of the People. The cooling winds from the North cleanse the air and the whole environment is rejuvenated after these winds pass through. Freezing winter winds kill off harmful bacteria, while preparing the Earth for a new beginning in the Spring. Trees are important to the air because of the way they take in carbon dioxide and give off oxygen essential to life.

Issues relating to oniye currently faced by the Nation include: air pollution standards, air space, wind energy production, air-waves for radio and television transmission.

The Lakota Language Provides the Basis for a Constitution

Lakota is the official language of the Nation. The basis for an Oglala Lakota Constitution exists in the Lakota language. Take the word Tiwahe, for example. Ti means, “living or dwelling;” wa, means “snow” or “purity.” He means, “stands.” Thus, Tiwahe is “the sacred dwelling or home that stands,” and refers to the family. Every educational institution of the Nation ought to be required to have the Lakota language be an integral part of the curriculum, and full immersion schools ought to be established for the children and young people of the nation.

Just as any person can have a weak or strong physical “constitution,” a People or Nation can have a weak or strong written Constitution. A person with a weak physical constitution lives in chronic poor health, and tends to be lethargic and lack energy. A person with a strong physical constitution has a strong immune system and tends to be healthy, vibrant, and energetic. A strong written Constitution made on the basis of powerful and creative ideas, is more likely to result in strength, health, and well-being for the Nation, while providing dignity to the

office holders of the Nation. The Lakota language contains the ideas, wisdom, and understanding necessary for creating a strong written constitution that will benefit the Nation.

The Constitution and By-Laws of the Nation may be thought of as Cankahu, “the spine or back bone.” This idea is contained in the expression “you have a strong back.” A Nation with a strong Constitution and strong leaders has a strong back or spinal column. In the past we had strong people to govern and lead; these were people selected by the whole Nation because they exhibited leadership qualities and wisdom based on the Seven Laws. Today, however, through the contemporary political process we find ourselves in the pitiful and unfortunate situation of placing people into positions of leadership not based on the strength of their character, but because their gift of gab. The IRA government system in Pine Ridge is a colossal failure. They have used up and squandered the people’s money and resources.

On a personal note, in 1977 I was one of the appointed leaders within the Oglala Lakota Treaty Council, and also serving as the Fifth Member of the Oglala Sioux Tribe. I presented to OST President Albert Trimble a paper on a Bi-Cameral form of government that would consist of two Houses of Government that would be separate from the Executive Committee and the Executive Offices. This form of government would have a separate Judiciary Council. Mr. Trimble reviewed the paper and offered his suggestions. He said that the concept I had presented to him was very similar to the British government, with a House of Commons and a House of Lords. Mr. Trimble recommended that the House of Commons would be the Oglala Sioux Tribal Council, and the new House of Lords would be the House of Chiefs, made up of the Chiefs of the Traditional government of the Oglala Lakota Nation.

Oglala Lakota Bi-Cameral Government Structure Proposed in 1977 by Birgil Kills Straight

Oyate Toamniciye Oglala Sioux Tribal Council	Chiefs and Headmen (Wicasa Itacan) of the Oglala Lakota Nation
Mr. Trimble’s idea: (House of Commons)	(House of Lords)

Naca Omniciye (Executive Committee):
Three Appointed from House of Commons,
Four Appointed from the House of Chiefs and Headmen.

Administrative and Business Councils to Oversee Existing and Future Programs.

A Separate Judicial System Will Be Established for Dispute Resolution and to Judge Law-Breakers. The Two Houses of Government will Determine how the Judges will be Appointed.

The current nine Districts will continue to operate as they do, but the Districts will be given more authority as a decentralized Oglala Sioux Tribal Government.

Nothing will become law until both Houses agree.

All laws for the Nation shall be codified on the basis of the Four Elements of Life and the Seven Laws.

The Tipiiyokiheya (The Governmental House) (The House Where Laws Are Made) Ti means living or dwelling. A Tipi creates a sacred connection between the physical abode on earth and the spiritual abode in the spirit realm. Our understanding of the universe is contained in the tipi. The first three poles of the tipi represent the past, present, and future. The first three poles are tied together toward the top of the lodge. Seven more poles are then placed in a circle around the first three anchor poles, moving clockwise. Each of these seven poles has a specific meaning, such as the Seven Brothers or the Seven Stars in the Big Dipper constellation; the Seven Brothers are the Fathers of the Seven Council Fires of the Oceti Sakowin: the Titonwan, the Sisitonwan, the Wahpekute, the Wahpeton, the Mniwakantonwan, the Ihunkton, and the Ihunktonwan.

In the Lakota understanding of life and of creation, everything happens in a series of four or in clusters of four. When we multiply by four the seven lodge poles placed around the first three anchor poles, we arrive at our understanding that there are 28 days between months or moons. After the ten poles are erected, the lodge covering is then put around this tipi structure, with additional two poles on the outside to regulate the flow of energy and

to circulate the air inside the lodge. This makes a total of twelve poles used for the lodge, thereby representing 12 months in a year.

The vortex, the point at which the poles are tied, connects us to the spirit world. The ancestors live in that spirit world in the upper reaches of the tipi; our ancestors are always with us. The tipi also describes creation, or the explosion and implosion of life. It represents the sacred circle, or the never-ending cycle of life. The tipi embodies the understanding of the connection between the physical and the metaphysical realm. Like the tipi, the Tipiiyokiheya also represents the entire universe, and a sacred understanding of life, as well as how to live on the basis of the Seven Laws.

As mentioned previously, in the Lakota understanding of life and of creation, everything happens in a series of four or in clusters of four. For example, when we combine the Seven Council Fires of the Oceti Sakowin, the Seven Sacred Sites, the Seven Sacred Rites, and the Seven Laws, we arrive once again at the number 28 ($7 \times 4 = 28$).

The Seven Council Fires (As Mentioned Above)

The Seven Sacred Sites around the Black Hills, four of which are mentioned below:

- 1) Inikare (“Purification”, western side of the Black Hills in Wyoming.
- 2) Towards the north from Inikare is Pteheohlogaca, “Grey Buffalo Horn.” (also known as “Devil’s Tower”).
- 3) On the northeast side of the Black Hills is Mato Paha, “Bear Butte.” (“Vision Quest”).
- 4) On the south side of the Black Hills is Mayaska Kakun, “Stone wall where visions and prophecies are etched by lightning bolts.” (also known as “Hell’s Canyon.”)

Of the seven Sacred Sites, honored by our ancestors, only the four named above are known at this time. We have a general idea of where the other three sacred sites are located, but we are not exactly certain.

Seven Sacred Rites:

- 1) Oinigage, “Purification Ceremony.”
- 2) Wiwanyang wacipi, “Sun Dance.”
- 3) Hanbleceyapi, “Vision Quest.”
- 4) Hunka, “Making of Relatives.”
- 5) Ishna tipi, “Girls Rite of Passage, Becoming a Woman.”
- 6) Wanagigluhapi, “The Keeping of Spirit.”
- 7) Tapa Wakanlyeyapi, “Tossing the Ball.”

Woope Sakowin (Seven Laws)

- 1) Wacante Oganake, “To help, to share, to give, to be generous.”
- 2) Wowauonsila, “Pity, Compassion.”
- 3) Wowauonihan, “To Respect, to Honor.”
- 4) Wowacintanka, “Patience and Tolerance.”
- 5) Wowahwala, “To be Humble, To Seek Humility.”
- 6) Woohitike, “To be Guided By Your Principles, Disciplined, Bravery and Courage.”
- 7) Woksape, “Understanding and Wisdom.”

We mention this above information because when the People gather in the Tipiiyokiheya we ought to strive to maintain a sacred connection between the physical abode on earth and the spiritual abode in the spirit realm. We ought to remain mindful of our past, present, and future. We ought to acknowledge our ancestors and our history, our language and cultural traditions, such as the Seven Laws. By doing so, we will be better able to meet the needs of the present generations, and to plan for the needs of our future generations. The security and protection of the People and their sacred homeland ought to be the first and cardinal priority of the Nation and of the Tipiiyokiheya, or “The House where laws are made.”

A long time ago, the Tipiiyokiheya was where the people came together to meet. The Tipiiyokeiheya is everything that deals with the life of every individual. Tipiiyokiheya does not merely refer to any physical building, but also what can be done through the decision-making of the Tribal Council, the Chiefs Councils, and the District and Community Councils.

Governmental System We need a four year plan which will begin with this next two-year term election. By the fourth year, which will be the second year of a four year term administration, they will begin with the implementation of a new constitution.

We need to give the IRA Council and the Chiefs Councils an opportunity to start developing the codes and regulations for the new constitution. We need a little more thought and direction to the two Houses of government, the Naca Omniciye (Executive Committee), and the House of Chiefs and Headmen (Wicasa Itacan). As you can see, no one person is president of the Nation. What we do have is the Spokesman from the Naca Omniciye, and the Spokesman of the Wicasa Itacan.

The Administrative and Business Councils will oversee existing and future programs, such as: Finance, Law and Order, Land Office, Education, Business and Economic Development (Taxation Issues and Gaming Issues), Healing and Welfare, Elders, Housing, and so forth.

We should develop a cadre of people, young and old, who will work with organizations that will come into contact with the Oglala Lakota Nation. As emissaries of the Oglala Lakota people they will work on behalf of the Nation with other nations and governments, for example the United Nations, the United States, the state of South Dakota, and so forth.

Women Winyan (the sacred life-givers), provide New Birth and Perpetual Renewal of Life to the Nation. Women are Sacred. They are to be honored and respected by all men at all times in keeping with the Seven Laws. Women are inherently deserving of respect. The Sacred White Buffalo Calf Pipe Woman gifted us with the Sacred Pipe, Laws and Rituals. A life of Wolakota can be achieved when the men behave respectfully toward women. The women are the mothers of the nation, the Oyate Kage ("people makers"). Without their vital contribution the Nation will become paralyzed as it has in the past, and the Nation will be incapable of continuing. Therefore, by strengthening and honoring the women of the Nation, the People are continually revitalized and renewed.

Children Children are the future of the Nation; the security and well-being of the Nation is ensured by providing security and well-being to the Children on behalf of the Seventh Generation. Children represent renewal, laughter, joyfulness, and heart and love. By nurturing and supporting them by providing for them in all areas of their lives, through a well- rounded Oglala Lakota education the language, culture, and spiritual traditions of the People shall be continually renewed and revitalized. Healing and revitalization are necessary for the sake of the children and the future generations.

Elders We thank the elders for retaining the language and the culture through its toughest time in its history as a result of another race attempting to stamp us out. We thank the elders in advance for their continued input in the creation in the new Constitution, parts of which we pointed out here. Furthermore, we thank the elders for all that they have done for the Nation. The governments of the Oglala Lakota people under the proposed Bi-Cameral system should heed their advice and utilize their suggestions and opinions as part of this process of nation-building we are currently engaged in.

Conclusion

Representing the Indigenous Law Institute, we have created this document in order to study and to comment on the issue of a proposed Oglala Lakota Constitution. This is but a sketch of a proposed system from an Oglala Lakota cultural and spiritual perspective. A lot of additional study and research will be necessary from many different quarters in order to complete such an endeavor for a whole nation of people. But because of our strong commitment to the Sacred Birthright of the Oglala Lakota Nation, as a rightfully free and independent People, we do have a vested interest in the creation of a new Oglala Lakota Constitution better able to meet the needs of the

present and future generations. A lot of work will need to be done during the four-year transitional timeframe we are recommending, particularly the drafting of codes and regulations.